

The NCPPA Subjects Employees to Liability for Conduct that is Protected Under Federal Labor Law

The NCPPA expressly targets employee activity.¹ Most notably, this includes unauthorized recording or other data collection on the employer's premises. It may also include union "salting", communicating with co-workers and the public about working conditions, and providing information and evidence about possible legal violations to federal agencies. These activities are (at least in some circumstances) protected under federal labor law.

¹N.C. Gen. Stat. § 99A-2 (2016); see also, Ark. Code § 16-118-113 (2017). Some Ag-Gag statutes also explicitly apply to employee activity. CITES. Others would implicitly apply to employees engaged in the types of activity generally subject to liability. CITES. At least some of that employee activity will likewise be protected under the NLRA. See n. ?, *infra*.

Protected Activity Under the NLRA

Section 7 of the NLRA “protect[s] the right of employees² to act together to better their working conditions”:³

*Employees shall have the right to self-organization, to form, join, or assist labor organizations, to bargain collectively through representatives of their own choosing, and to engage in other concerted activities for the purpose of collective bargaining or other mutual aid or protection*⁴

It is an unfair labor practice under Section 8(a)(1) for an employer “to interfere with, restrain, or coerce employees in the exercise of the rights guaranteed in section 7”.⁵

²Certain categories of employees are excluded from coverage under the NLRA, notably agricultural laborers. 29 U.S.C. § 152(3). While this exclusion might appear to alleviate any conflict with state ag-gag laws that apply only to agricultural facilities, that is not necessarily the case. The agricultural laborer exclusion applies only to those engaged directly in farming, *Bud Antle, Inc. v. Barbosa*, 45 F.3d 1261, 1274 (9th Cir. 1994), (quoting *Camsco Produce Co.*, 297 N.L.R.B. 905 (1990)) or who “perform tasks which are incidental to or in conjunction with [the employer’s] farming operations,” *Bud Antle, Inc.*, *supra*, note, 2, such as “processing agricultural products ... grown on the premises of the farm itself.” *NLRB v. Cal-Maine Farms, Inc.*, 998 F.2d 1336 (5th Cir. 1993). However, it does not apply to those who are not employed by a “farmer”, see *Bud Antle, Inc.*, *supra*, note, 2, at 1274 (agricultural laborer exclusion does not apply to employees of vegetable cooling and packing facility where employer did not grow vegetables itself but purchased them from independent growers); *NLRB v. Monterey County B. & C. Trades Council*, 335 F.2d 927 (9th Cir. 1953) (agricultural laborer exclusion does not apply to employees of contractor hired to construct buildings and install equipment on poultry farm). Nor does it apply to those who process, distribute, or otherwise handle agricultural goods not grown or raised by the employer for use in its own farming operations. *Holly Farms Corp. v. NLRB*, 517 U.S. 392 (1966) (employees who collect live chickens from independent growers and deliver them to employer’s processing plant not excluded); *Bayside Enterprises, Inc. v. NLRB*, 429 U.S. 298 (1977) (truck drivers who deliver poultry feed produced at employer’s mill to independent poultry farms under contract with employer not excluded); *NLRB v. Cal-Maine Farms, Inc.*, *supra*, note, 2 (egg processing facility employees who regularly handle products purchased by employer from outside sources not excluded); *Camsco Produce Co.*, *supra*, note, 2 (mushroom processing facility employees who regularly handle products purchased by employer from outside sources not excluded).

In contrast, state ag-gag laws typically define agricultural facilities more broadly, to include not just farms but also other operations along the production, processing, and distribution chain. See, e.g. *Ida. Code* § (2)(a) (2014) & (b) (defining “Agricultural production” and “Agricultural production facility” to include “Construction, expansion, use, maintenance and repair of an agricultural production facility,” “Processing and packaging agricultural products, including the processing and packaging of agricultural products into food and other agricultural commodities,” and “Manufacturing animal feed,” along with activity more directly connected to raising crops and animals.); accord OTHER STATES. Consequently, the NLRA applies to at least some employees of agricultural facilities covered by state ag-gag laws.

³*NLRB v. Washington Aluminum Co.*, 370 U.S. 9 (1962).

⁴29 U.S.C. § 157.

⁵*Id.* § 151 et seq. 158(a)(1).

Concerted activity pertaining to “terms, tenure or conditions of employment”⁶ is protected under Section 7 regardless of whether employees have organized or are seeking to organize in a labor union, and even absent “a specific demand upon their employer to remedy a condition they find objectionable”.⁷ Activity aimed at protecting the rights or advancing the interests of multiple employees is “concerted” for purposes of Section 7, even if undertaken by a single employee acting alone.

*Nor can we accept the company’s contention that because it admittedly had an established plant rule which forbade employees to leave their work without permission of the foreman, there was justifiable “cause” for discharging these employees, wholly separate and apart from any concerted activities in which they engaged in protest against the poorly heated plant. Section 10(c) of the Act does authorize an employer to discharge employees for “cause” and our cases have long recognized this right on the part of an employer. But this, of course, cannot mean that an employer is at liberty to punish a man by discharging him for engaging in concerted activities which § 7 of the Act protects.*⁸

Under current Board law, an employer’s facially neutral work rule that might apply to some protected Section 7 activity does not necessarily violate Section 8(a)(1).⁹ However, it is an unfair labor practice for an employer to enforce such a rule against an employee for conduct protected under Section 7.¹⁰

McGinley & McGinley-Stempel, 30 Hofstra Lab. & Emp. L. J. 75 (2012)

- “Making the distinction between concerted, protected activity and speech that is not concerted or protected is sometimes tricky because the analysis is heavily fact-dependent, and different people may interpret the facts differently.” 30 Hofstra Lab. & Emp. L. J. at 90 (2012)
- The Board has exclusive original jurisdiction to make that determination. If the activity in question is even arguably protected under the NLRA, neither a state nor federal court may decide.
- “Section 7 applies to the concerted action of all employees, whether in unionized workplaces, or whether or not they are engaged in a union campaign.” 30 Hofstra Lab. & Emp. L. J. at 88, citing *Bravo v. Dolsen Cos.*, 888 P.2d 147, 150-51 (Wash. 1995)
- “an individual can be engaged in concerted activity if he or she engages in the activity” “with or on the authority of other employees, and not solely by

⁶29 U.S.C. § 151 et seq, (quoting NLRA Section 2(9), 29 U.S.C. sec. 152(a), defining “labor dispute”).

⁷*NLRB v. Washington Aluminum Co.*, *supra*, note, 3.

⁸*Id.*

⁹*The Boeing Company*, 365 N.L.R.B. No. 154 (2017).

¹⁰*AT&T Mobility, LLC*, 370 N.L.R.B. No. 121 (2021) (employer’s facially neutral work rule against workplace recording was lawful under NLRA; but employee’s recording of disciplinary meeting, in violation of work rule, was protected under Section 7, and employer committed unfair labor practice by threatening employee with reprisals for future violations of the rule)

and on behalf of the employee himself.’ ” 30 Hofstra Lab. & Emp. L. J. at 89, quoting Allstate Maintenance, LLC, 367 NLRB No. 68 (January 11, 2019)

NLRB v. Washington Aluminum Co., 370 U.S. 9, 14-15 (1962)

- Spontaneous walkout by non-unionized employees over workplace conditions was concerted activity. 370 U.S. at 14-15

Halstead Metal Products v. NLRB, 940 F.2d 66 (4th Cir. 1991)

- NLRA secs. 7 and 8(a)(1) “effectively insulate employees from discharge, refusal to rehire, or other employer retaliation for engaging in concerted activities for mutual aid or protection, ‘even though no union activity be involved, or collective bargaining be contemplated.’ ” 940 F.2d at 69, quoting Joanna Cotton Mills Co. v. NLRB, 176 F.2d 749, 752-53 (4th Cir.1949).

United Merchants & Mfrs., Inc. v. NLRB, 554 F.2d 1276, 1278 (4th Cir.1977)

- “work stoppage and walkout by unrepresented employees for their mutual aid” was protected concerted activity. 554 F.2d at 1278, citing NLRB v. Washington Aluminum.

NLRB Office of General Counsel, Memorandum GC 21-03 (March 31, 2021)

While protected, concerted activity can be a precursor to a union campaign, it also can occur outside of the context of union activity, such as in instances where employees raise safety concerns to their employer, or seek protection from government agencies. Nonetheless, constraints and limitations placed on employees engaging in concerted activities, and adverse actions taken against them in response to their protected activity, serve to effectively undermine the declared policy of the United States.

Id. at 1.

Section 7 grants employees the right to engage in “concerted” activities for the purpose of “mutual aid or protection.” The latter element “focuses on the goal of concerted activity,” specifically, “whether there is a link between the activity and matters concerning the workplace or employees’ interests as employees.” The Board analyzes whether an activity is for “mutual aid or protection” using an objective standard; thus, employees’ subjective motives are irrelevant. The “mutual aid or protection” clause covers employee efforts to “improve their lot as employees through channels outside the immediate employee-employer relationship,” as well as activities “in support of employees of employers other than their own.”

Id at 2, citing Fresh & Easy Neighborhood Market, Inc., 361 NLRB 151, 153 (2014); Eastex, Inc. v. NLRB, 437 U.S. 556, 559-60, 565 (1978)

Section 7 protection applies not only to union activity and labor organizing; it may also cover the fundamental precursor actions that form the cornerstone of any other actions the employees may take, like discussing or protesting wages, hours, and working conditions. Additionally, employee advocacy can have the goal of “mutual aid or protection” even when the employees have not explicitly connected their activity to workplace concerns. This includes employees’ political and social justice advocacy when the subject matter has a direct nexus to employees’ “interests as employees.”

Id. at 2

The Ohio Bell Tel. Co., 370 NLRB No. 29 (Oct. 28, 2020)

The rights guaranteed in Section 7 include the right “to form, join, or assist labor organizations, to bargain collectively through representatives of their own choosing, and to engage in other concerted activities for the purpose of collective bargaining or other mutual aid or protection.” See Section 7 of the Act. Section 8(a)(1) of the Act provides that it is an unfair labor practice for an employer to interfere with, restrain, or coerce employees in the exercise of the rights guaranteed in Section 7 of the Act. In Meyers Industries (Meyers I), 268 NLRB 493 (1984), and in Meyers Industries (Meyers II), 281 NLRB 882 (1986), the Board held that “concerted activities” protected by Section 7 are those “engaged in with or on the authority of other employees, and not solely by and on behalf of the employee himself.” However, “the activity of a single employee in enlisting the support of his fellow employees for their mutual aid and protection is as much “concerted activity” as is ordinary group activity.” Whitaker Corp., 289 NLRB 933 (1988) (quoting Owens-Corning Fiberglass Corp. v. NLRB, 407 F.2d 1357, 1365 (4th Cir. 1969)). Individual action is concerted if it is engaged in with the object of initiating or inducing group action. A conversation can constitute concerted activity when “engaged in with the object of initiating or inducing or preparing for group action or [when] it [has] some relation to group action in the interest of the employees.” Meyers II, supra, 281 NLRB at 887 (quoting Mushroom Transportation Co., 330 F.2d 683, 685 (3 Cir. 1964)). The object of inducing group action, however, need not be expressed depending on the nature of the conversation. See Sabo, Inc. d/b/a Hoodview Vending Co., 359 NLRB 355, 358-359 (2012) (vacated but incorporated by law Hoodview Vending Co., 362 NLRB 690 (2015)). Moreover, Meyers I and II does not require that concerted activity be well-organized or effective, it needs only be engaged in for other employees for mutual benefit. See also Stephens Media, 356 NLRB 661, 679 (2011) (finding the wearing of red arm bands to be protected concerted activity even where no evidence was offered showing management was aware of their purpose).

Recording & Other Data Collection

Section 7 protects employees who take photographs, make audio or video recordings, or use other means to collect information about workplace conditions, communications, or activity for the purpose of mutual aid and

protection.¹¹ Employees may also use “surreptitious” or otherwise unauthorized recordings as evidence in administrative or judicial proceedings to vindicate their legal rights.¹²

Employees are subject to liability under the NCPPA for recording or data collection in the non-public areas of the workplace “without authorization”. It is unclear whether “without authorization” simply means that the employee violates an employer’s rule prohibiting or restricting such activity, or if it means the employee must obtain the employer’s affirmative permission even where there is no general anti-recording rule in place. Either way, there is a conflict with the protection that the NLRA extends to employees who make recordings or otherwise collect information in the workplace in the exercise of their rights under Section 7.

Salting

The NCPPA imposes liability on unauthorized data collection or recording by “An employee who enters the nonpublic areas of an employer’s premises *for a reason other than a bona fide intent of seeking or holding employment* or doing business with the employer.”¹³

This provision could be construed to apply to union “salts”: union members who take jobs at non-union workplaces with the aim of organizing the employees.¹⁴ Salts sometimes identify themselves as union members and organizers when applying for jobs,¹⁵ but sometimes keep their affiliation and motive covert.¹⁶ In the latter circumstance, the employer may very well regard

¹¹*White Oak Manor*, 353 N.L.R.B. 795, 798–99, n.2 (2009) (finding that photography was part of the *res gestae* of employee’s protected concerted activity in documenting inconsistent enforcement of employer dress code); *Sullivan, Long & Hagerty*, 303 N.L.R.B. 1007, 1013 (1991) (finding employee’s use of tape recorder in workplace to aid federal government investigation to be protected).

¹²*Whole Foods Market, Inc.*, 363 N.L.R.B. No. 87 (2015), citing *Times-Herald Record*, 334 N.L.R.B. 350, 354 (2001); *Arrow Flint Electric Co.*, 321 N.L.R.B. 1208, 1219 (1996); *Wellstream Corp.*, 313 N.L.R.B. 698, 711 (1994); *McAllister Bros.*, 278 N.L.R.B. 601 (1986); *Algreco Sportswear Co.*, 271 N.L.R.B. 499, 505 (1984); *East Belden Corp.*, 239 N.L.R.B. 776, 782 (1978).

¹³N.C. Gen. Stat. § (b)(1) & (2) (emphasis supplied); see also Ark. Code § 16-118-113. Some Ag-Gag laws similarly target those who gain entry to the premises under the guise of seeking employment. See, e.g., CITE (imposing liability on one who “Obtains employment with an agricultural production facility by force, threat, or misrepresentation with the intent to cause economic or other injury”).

¹⁴See Carey Dall & Jonathan Cohen, *Salting the Earth: Organizing for the Long Haul*, New Labor Forum 36 (2002); Erik Forman, *Let’s Get to Work*, Jacobin, (2017), jacobinmag.com/2017/02/labor-unions-workers-salts-students-organizing/ (reviewing the history and practice of salting and describing the author’s own experience as a salt); James D. Walsh, *The Double Life of an Undercover Union Organizer*, New York Magazine Intelligencer, (2016), nymag.com/intelligencer/2016/02/what-its-like-tobe-a-salt-for-the-unions.html.

¹⁵See, e.g., *Aerotek, Inc. v. N.L.R.B.*, 883 F.3d 725 (8th Cir. 2018); *Fluor Daniel, Inc.*, 311 N.L.R.B. 498 (1993).

¹⁶See, e.g., Bourree Lam, *Life as an Undercover Union Organizer*, The Atlantic, (2016),

the concealment as a misrepresentation. Employers wishing to avoid unions no doubt regard salting as harmful to their economic interests.¹⁷

Employee protections under the NLRA apply to those engaged in salting,¹⁸ as long as they are “genuinely interested in seeking to establish an employment relationship with the employer.”¹⁹

MIGHT BE OK IF LIABILITY UNDER NCPPA & OTHER STATE LAWS IS LIMITED TO THOSE WHO OBTAIN EMPLOYMENT FOR THE SOLE PURPOSE OF CAUSING INJURY, OR WITH NO Bona Fide INTEREST IN THE JOB ITSELF. NOTE AMBIGUITY IN LANGUAGE OF NCPPA.²⁰ But, as written, “employment fraud” provisions in these statutes at least plausibly cover those with mixed motives, who would be regarded as statutory employees under the NLRA. This is particularly true of the NCPPA, which explicitly identifies

www.theatlantic.com/business/archive/2016/03/undercover-union-organizer/474387/ (describing experience as a covert salt).

¹⁷See David P. Twomey, “Salting”: A Fair Organizing Strategy or a Nefarious Tactic?, 37 Bus. Law Rev. 103, 106 (2004) (“Employers believe that salting abuse is a ‘nefarious union pressure tactic’ intended to wreak economic hardship on non-union employers by increasing costs to employers through workplace sabotage and the filing of frivolous discrimination charges.”). The view that salting is a devious practice causing economic harm to employers is reflected in a congressional hearing on alleged “salting abuses”. *Examining Union ‘Salting’ Abuses and Organizing Tactics That Harm the U.S. Economy: Hearing before the Subcomm. on Employer-Employee Relations of the H. Comm. on Education and the Workforce*, 108th Cong. (2004). In his opening statement, subcommittee chair Rep. Sam Johnson contended that “Certain unions use ‘salts’ to cause deliberate harm to businesses by increasing their costs and forcing them to spend time, energy, and money to defend themselves against frivolous charges, and sometimes, to run employers out of business.” *Examining Union ‘Salting’ Abuses and Organizing Tactics That Harm the U.S. Economy: Hearing before the Subcomm. on Employer-Employee Relations of the H. Comm. on Education and the Workforce*, *supra* note 17 at 2. A parade of employer witnesses then gave anguished testimony about the alleged harms they suffered as a result of salting campaigns. *Examining Union ‘Salting’ Abuses and Organizing Tactics That Harm the U.S. Economy: Hearing before the Subcomm. on Employer-Employee Relations of the H. Comm. on Education and the Workforce*, *supra* note 17 at x. In similar vein, a “Fact Sheet” in support of proposed legislation to outlaw salting, issued by a prominent anti-union organization, decried the practice as “an organized conspiracy on the part of Big Labor bosses” and “an instrument of economic destruction aimed at non-union companies”. National Right to Work Committee, *Salting: Coercive Big Labor Scheme to Increase Forced Unionism* (2003). See also, Nick Johnson, *No Salt Added*, Jacobin, (2017), jacobinmag.com/2017/03/salts-union-organizing-nlr-obama-trump-labor (discussing legislative efforts to reverse *Town & Country* and outlaw salting); Twomey, *supra* note 17 at 116, n. 92 (citing proposed anti-salting bills); CURRENT ANTI-SALTING BILL?

¹⁸*NLRB v. Town & Country Elec.*, 516 U.S. 85 (1995) (holding job applicants’ motive in seeking employment as part of union salting campaign did not deprive them of protection as statutory employee under NLRA)

¹⁹*Toering Electric Co.*, 351 N.L.R.B. 225 (2007); *Oil Capitol Sheet Metal, Inc.*, 349 N.L.R.B. 1348 (2007); see also Johnson, *supra* note 17 (discussing narrowed protection for salts under *Toering Electric Co.*, *supra*, note, 19 and *Oil Capitol Sheet Metal, Inc.*, *supra*, note, 19).

²⁰There might still be problems in relation to other federal employment laws. For example, the use of “tester” applicants is a common practice for identifying discriminatory hiring practices. CITES. Courts have upheld the practice even where the testers had no real interest in the job. CITES.

those subject to liability as “employees” and further predicates their liability on the use of recordings or other information “to breach the person’s duty of loyalty to the employer.”

Communication with Co-Workers & Public

Employees under the NLRA also have a right to communicate with co-workers and the public about working conditions and disputes.²¹

Under the NC (and other?) data Trespass statute(s), an employee faces liability not only for making unauthorized photos or recordings in the workplace, but also for their unauthorized dissemination, e.g. sharing copies with other employees or union representatives, or posting them on social media. But the NLRA protects employee communications, both among coworkers and with the public, about their shared concerns as employees. SOCIAL MEDIA CASES; HANDBILLING & PICKET SIGN CASES.

Providing Information and Evidence to Federal Agencies

The NLRA protects the right of employees to petition for a union representation election, file complaints of unfair labor practices with the NLRB, and testify at NLRB proceedings.

By impairing the ability of employees to document workplace conditions and activity, the NCPPA undermines the NLRB’s procedures for vindicating employee’s rights under the NLRA.²²

Disclosure of information to state officials is exempt from liability under the NCPPA. However, the statute contains no exemption for disclosures to federal agencies or officials.

Disloyalty Under the NLRA

Concerted activity may lose protection under the NLRA if it amounts to disloyalty to the employer. For example, “sharp, public, disparaging attack[s]

²¹*Kinder-Care Learning Centers, Inc.*, 299 N.L.R.B. 1171 (1990).

²²The NCPPA and other data trespass laws similarly undermine the enforcement of other federal laws that protect employees against health and safety hazards, discrimination, wage theft, and other harmful and abusive employment practices. Employers are hardly likely to grant employees permission to collect evidence of such violations, and may very well attempt to cover up the problems if alerted that employees are planning to do so. Consequently, to substantiate claims of unlawful working conditions or employer conduct, employees must frequently take photos, make audio-video recordings, or copy documents without the employer’s knowledge and consent. See *PETA v. Stein - Farm Workers Amicus*, (2021).

upon the quality of the company's product and its business policies, in a manner reasonably calculated to harm the company's reputation and reduce its income" may be unprotected, even if made in connection with a labor dispute.²³

COMPARE/CONTRAST DISLOYALTY EXCEPTION UNDER NLRA WITH "DUTY OF LOYALTY" UNDER STATE LAW. AMBIGUITY SURROUNDING EMPLOYEE DUTY OF LOYALTY UNDER NC LAW.²⁴

²³*NLRB v. Electrical Workers*, 346 U.S. 464 (1953) (affirming NLRB decision that employees' distribution of handbills attacking quality of employer's television programming, without reference to labor dispute, was unprotected); *Miklin Enterprises, Inc. v. NLRB*, 861 F.3d 812 (8th Cir. 2016) (holding statements by union supporters in posters and press releases, suggesting employer's customers faced health risk from eating food prepared by employees working while sick, were unprotected even though related to employees' effort to gain paid sick leave).

²⁴*Dalton v. Camp*, 353 N.C. 647 (N.C. 2001); *Austin Maint. v. Crowder Const.*, 742 S.E.2d 535 (N.C. Ct. App. 2012).